सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
SAHAR, ANDHERI (EAST), MUMBAI – 400 099
e-mail- proaccsahar@gmail.com Phone-022-22816696

F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 6 Date: 23.12.2020

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 27.11.2020

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 27.11.2020 at 03.00 pm and was co-chaired by Shri Vijay Singh Chauhan, Commissioner of Customs (General), Shri Anantha Krishnan, Commissioner of Customs (Export) and Shri Vinayak Azaad, Commissioner of Customs (Import). In view of the government advisory regarding "social distancing" and preference for eschewing avoidable movements to combat the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives from the stakeholder organizations participated in the meeting:

Name & designation	**Organization**
Shri M. K. Sarangi, Addl. Commissioner (Import)	Customs, ACC, Andheri
Shri Vishal Sanap, Addl. Commissioner (Import)	Customs, ACC, Andheri
Shri Prabhakar Kumar, Jt. Commissioner (Export)	Customs, ACC, Andheri
Shri R.K. Suvarna, AC (Import)	Customs, ACC, Andheri
Shri Bipin Jadhav, AC (Import)	Customs, ACC, Andheri
Shri Ashwini Bandekar, AC (Import)	Customs, ACC, Andheri
Shri Roshan Lal, AC (Import)	Customs, ACC, Andheri
Shri S C Das, AC (General)	Customs, ACC, Andheri
Name of attendees from stakeholder organizations	**Organization**
Shri Dushyant Mulani, Shri Sanjeev Harale, Shri Kaushal Thakkar, Shri Ketan Desai, Shri K.Shetty, Shri Ganpat Korde, Shri Shanakar Shinde	BCBA
Shri Bala Ayer	ACAAI
Shri Manoj Singh	MIAL
Shri Raj Dhule, Shri Jignesh	AIATSL
Shri Mark Fernandes	MSF Bombay
Shri Rishikesh	Siemens Healthcare
Shri Vasudevan, Shri Gaurav Dogar	DHL Express
Shri Jayesh parab	MACCIA
Shri Venkatraman	DHL Logistics
Shri Newton Fernandes	All Nippon Airlines
Shri Kiran Panbude	Collector of Stamps
Other attendees	
Shri Paresh Shah	Shri Nandan Kanchan	Shri Anwar Khan

Shri Mangesh Mali	Shri Sorab P Engineer	Smt. Chaitaly Mehta
Shri Rajiv Desai	Shri Sanjeev Harale	Shri Dayanand Kotian
Smt. Vaishali Kulkarni	Shri Abdul Gafume	Shri Paresh Sangani
Shri Prathmesh Sirambedkar	Shri Lynn Bothello	Shri Ashish Pednekar

At the outset, Commissioner of Customs (G) welcomed the members of Trade, Customs Broker Associations, Airlines Representatives, Custodian Representatives, and other stake holders present for the web-meeting.

Following agenda points were taken up:

A. OPEN POINTS FROM LAST PTFC MEETING HELD ON 29.10.2020

1. Issues with Faceless assessment

(Import)

I. Delay in assessment of B/E's at various locations across the country.

II. Examination order and instructions are given asking for bank attested invoice, 100% examination, asking for compliance of BIS, WPC etc, even where not required.

III. Delay in clearance of consignments EPCG, Advance Authorization and provisional assessment cases due to 100% BG being levied, even in cases where not applicable. To remove the 100% BG there is confusion between PAG and FAG, as regards who will remove the 100% BG.

IV. Examination orders are not given properly for second hand consignments, re-import consignments, temporary imports etc. For rectification of the examination order there is confusion whether to approach PAG or FAG at present considerable clearances are delayed due to this,

V. Several FAG locations do not operate on Saturdays unlike at Mumbai and therefore B/E's submitted on Friday would not get assessed and cleared on Saturday.

VI. Difficulty in carrying out provisional assessments in FAG due to co-ordination and execution of Bond and BG (wherever required) SVB, FTA, other duty exemption schemes including concessional rate for manufacturing & project imports, etc.

VII. Some assessments are being made with examination instructions entered in the special comments box which CB and Trade is not aware. Hence during examination after payment of duty there are surprise checks which the trade needs to face.

VIII. SOP for carrying out amendment to the import BE's which are assessed by FAG needs to be provided ,since there are considerable amendments pertaining to short shipments, part shipment change of AWB etc, needs to be carried out for timely clearances.

IX. Further they have suggest if assessments are delayed for more than 24 hours, a nodal officer be kindly appointed to expedite the clearance.

Commissioner (Import) acknowledged certain teething issues relating to faceless assessment, which are being resolved by CBIC and at the local level

with highest priority. As regards the specific points, Commissioner (Import) suggested that they will be considered in offline meeting during the next week.

(Point Open)

2. Few airlines still not working 24 x 7 for issuance of delivery of import consignments, like TURKISH AIRWAYS, DHL, FEDEX, UPS, SQ, CATHAY, after payment of their d/o charges, there is a tremendous delay in releasing online d/o. There are no contact details on their cargo arrival notice nor e-mail ID to communicate.

BCBA stated that email ID and specific SOP has been circulated among all the airlines & meeting has been fixed with MIAL to ease the dwell time on this account.

(Point Closed)

(MIAL)

3. MIAL is accepting packages in import shed from the carriers knowingly when the HAWB Label is missing from the package, and the same consignment is held up at the time of taking delivery at the gate. Earlier, MIAL was keeping the remark in their systems as "HOLD" which should continue to avoid cancellation of the delivery of the import cargo.

BCBA stated that in this regard process has been streamlined by MIAL and no complaints for the past one month came regarding this specific issue. BCBA further stated that all the packages have specific labels on them and no complaints have been received from CHA regarding the clearance of cargo.

(Point Closed)

Fresh Agenda Points

POINTS RAISED BY BCBA:

1. **Faceless Points** :-

(Import)

a) There is considerable delay of min 5 to 10 days for clearance.
b) There is an urgent need to depute Nodal Officers at each PAG/ FAG location with email ID and Cell Number to address difficulties on assessments. We request the information to be uploaded on CBIC Website.
c) We request that any cases or re-assessment should be carried out by PAG at the level of Dy. Commissioner instead of present situation where the files are sent up to Commissioner level for re-assessment.
d) For timely clearance and sake of transparency, clearance instructions need to be given on the body of the Bill of Entry and comments in special comments box should be avoided.
e) Ref. Para No 2.5 of CBIC Circular No 45/2020 which stipulates that Custom Brokers need to approach FAG for carrying out re-assessment need to be re-looked into. We suggest that since the Importers / Custom Broker do not have accessibility to FAG, the proper officer in PAG will need to be approached by trade for carrying out re-assessment.
f) If consignment is not attended within 48 hours, a system may be developed where a B/E may be directed to skip the queue to PAG/FAG. A link on website may be created to post the B/E pending for more than 48 hours.
g) Amendments must be passed at AC/DC level.

h) Standardizing the template of Examination Orders.

Commissioner (Import) suggested that these specific points will also be considered in the offline meeting during the next week.

(Point Open)

(Import)

2. As per the practice in Import shed at ACC Mumbai, we request that examination of goods be completed on hourly basis instead of current practice of doing it twice a day.

Commissioner (Import) stated that these are the early days for the officers who have recently joined Import Commissionerate after their transfer/rotation. Directions will be passed down for completing examination on hourly basis.

(Point Closed)

3. In case of queries raised by Shed officers, it is necessary for the CB to know the particular officer who has raised the query for giving the proper explanation before COC of the shipment. We request a touch screen KIOSK to be provided in the import shed.

Additional Commissioner (Import) discussed the issue with AC/Shed. He suggested that we may display the sheet with SSOID and mobile numbers of officers of the shed. Further help desk of TSK shall coordinate in these cases in case SSOID of PAG not shown on printed copy of B/E.

(Point Closed)

4. After roll out of Faceless Assessment, we request that Bill of Entry to be completed in 48 hours. Currently the members are facing tremendous delay in assessment of BE.

BCBA requested that this point will be taken under Faceless Assessment meeting.

(Point Closed)

POINTS RAISED BY ACAAI:

(Export)

1. We thank you for PN 136 / 2020 streamlining the refund procedures and reducing the paper work.

(Point Closed)

(General)

2. We do not receive Cargo Arrival Notice (CAN) from the airlines and console agents. This delays filing of BE.

Commissioner (General) stated that a public notice 138/2020 dated 27.11.2020 has been issued regarding expeditious filing of IGM and permit grant of entry inwards upon the arrival of the aircraft and related permission; and further he asked ACAAI to submit specific data for one week, so that the same may be brought to the notice of the concerned airlines and if possible suitable penal action may be suggested as per Customs Act for such delay after issuance of public notice. Further BCBA suggested that real time data for the entry inward should be maintained in the system. Commissioner (G) welcomed the suggestion. MIAL suggested that their segregation report which is real time in nature may be digitally inked and the Cargo Arrival Notice may be ended. On this ACAAI stated that CAN is important as they can estimate the charges on the goods. Finally Commissioner (G) suggested that there should be offline meeting with stakeholders to discuss viability of CAN. Commissioner (I) has also suggested that stakeholder should give their suggestions over CAN.

(Point Open)

(Import)

3. Delivery Order payment is made online to airlines and console agents but airlines do not give the receipt in time. Airlines insist that we come to their office to collect the receipt. They should give the receipts online so that we can avoid going to their office in these times.

The representative of Lufthansa suggested that the CB need the original copy of receipt for payment of GST, and hence they will need to visit their office for collection of the same. It was decided to continue to discuss the possibility of conducting this process online.

(Point Open)

(Import)

4. In the import shed, when a BE comes up in queue for OOC, the officers concerned do not take action immediately and give OOC or raise any query. They send this BE in the pending box and it remains there till such time the CB does not approach the officer concerned. We request that the OOC should not be put in the pending box if there is no valid reason.

Commissioner (I) has assured regarding this issue that this should be sorted out immediately and officers are sensitized regarding the same.

(Point Closed)

NEW POINT RAISED BY BCBA:

1. BCBA suggested that online portal for payment of stamp duty for delivery order need to be issued.

In this regard, Kiran Pangude, Collector of Stamp, stated that portal for online payment of stamp duty is in pipeline and it will be tested within 10-15 days.

(Point Closed)

The meeting ended with thanks to the Chair.

This is issued with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

23/12/2020

(M.K. Sarangi)
Addl. Commissioner of Customs (Import)
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Asst, Drug Controller, ACC, Sahar.
8. Office copy. discussion